



STANDING ORDER NO. Lic.& Leg./30/2022

GRANT OF LICENCE/NO OBJECTION CERTIFICATE FOR USE/SALE/STORAGE/TRANSPORT OF AMMONIUM NITRATE

INTRODUCTION

This Standing Order aims to lay down rules and procedures related to grant of Ammonium Nitrate Licence by Licensing Authority, Delhi to regulate and control manufacture, conversion, stevedoring and bagging, import, export, transport, possession for sale or use of Ammonium Nitrate and issue of "No Objection Certificate" where licence is to be granted by the Controller of Explosives, Nagpur or Joint Chief Controller of Explosives, North Circle, Faridabad, Haryana.

As per Rule 2 (b) of the Ammonium Nitrate Rules, 2012, (As amended by Ammonium Nitrate (Amendment) Rules, 2021), Ammonium Nitrate means the compound having the chemical formula NH_4NO_3 and includes any mixture or compound having more than 45 percent Ammonium Nitrate by weight including emulsions, suspensions, melts or gels (with or without inorganic nitrates) but excluding emulsion or slurry explosives and non-explosives emulsion matrix and fertilizers from which Ammonium Nitrate cannot be extracted by any physical or chemical process.

1. LICENSING AUTHORITY UNDER THE RULES

As per section 146 (i) of the Delhi Police Act, 1978, the Commissioner of Police is empowered to exercise all powers which may be exercised by District Magistrate under the Acts mentioned in Schedule I, and the rules made there under, which include the Explosive Act, 1884 and the Ammonium Nitrate Rules 2012.

Therefore, all the powers vested in the 'District Authority' as mentioned in the Explosives Act, 1884 and the Ammonium Nitrate Rules, 2012 (Rule-2 (h) (i)) are to be exercised by the Commissioner of Police, Delhi, which in case of Ammonium Nitrate licences/No Objection Certificates have been delegated to

the Additional Commissioner of Police, Licensing, Delhi vide order No. 83-182/Spl. Cell/PHQ, dated 01.02.2008.

The Ammonium Nitrate licences are to be granted by Joint/Additional Commissioner of Police, Licensing, Delhi, as the case may be, upto a quantity of maximum of 30 MT as mentioned in Schedule-I of the Rules to:

- i. Possess for sale or use of Ammonium Nitrate from a storehouse,
- ii. To possess for use of Ammonium Nitrate for agricultural purposes from a storehouse not exceeding 3 MT and,
- iii. To transport Ammonium Nitrate for licences granted by Joint/Additional Commissioner of Police, Licensing, Delhi for possession for sale or possession for use as per Schedule I of Ammonium Nitrate Rules, 2012, (As amended by Ammonium Nitrate (Amendment) Rules, 2021.

The licences for quantity exceeding 30 MT of Ammonium Nitrate are granted by the Controller of Explosives/Nagpur or Joint Chief Controller of Explosive, Faridabad Haryana after receipt of No Objection Certificate issued by the Joint/Addl. Commissioner of Police, Licensing Delhi.

2. No licence required for possession of Ammonium Nitrate of quantity less than 5 kg by certain establishments: Rule-3 (3)

No licence shall be required for possession and use of Ammonium Nitrate of quantity not exceeding five kilogram (5kgs) by established laboratories, educational institutions, medical institutions, hospitals and clinics for scientific and educational purposes. However, they must inform local police about the quantity under possession for the aforesaid purposes.

3. CONDITIONS

Grant of Ammonium Nitrate licences/No Objection Certificate shall be so regulated that no pilferage, fire accidents/incidents resulting in injury and loss of human life takes place. This should be done in accordance with the provisions of The Explosives Act, 1884, The Explosives Substances Act, 1908, The Ammonium Nitrate Rules, 2012 and other conditions as given below:-

- i. Licences shall be granted only for a storehouse located on a commercial street or area as per the Master Plan Delhi-2021 in accordance with Section 15.5 & 15.6.2 and 15.6.3. The list of notified commercial areas is given in supplement to MPD-2021.
- ii. The applicant shall obtain prior approval plan from the authority empowered to grant license by submitting documents mentioned as per rule 33.
- iii. The applicant shall be given one set of plans showing safety distances required to be kept clear as specified in Rule 12 duly endorsed together with approval of Joint/Addl. CP/Licensing.
- iv. The Ammonium Nitrate storehouse shall not be located in populated area.
- v. The applicant shall at his own expenses provide sufficient number of security guards for safe custody of Ammonium Nitrate in the licensed premises.
- vi. The premises used for manufacture of the Ammonium Nitrate or conversion of the melt into solid form of Ammonium Nitrate or vice versa and the storehouse shall be surrounded by a wall of at least two metres height of such strength and construction as to effectively prevent entry of unauthorized persons.
- vii. Safety distance of 4.5 metres from storehouse to the compound wall and 45 meters from any protected works shall be maintained for storage house of Ammonium Nitrate not exceeding 30 MT.
(Note:- Safety distance shall be measured from the edge of the storehouse)
- viii. Safety distance of 9 metres from storehouse to the compound wall and 90 meters from any protected works shall be maintained for storage house of Ammonium Nitrate exceeding 30 MT.
(Note:- Safety distance shall be measured from the edge of the storehouse)
- ix. The storehouse may be adjacent to the bagging unit of the manufacturing, conversion or explosives or Nitrous Oxide

manufacturing plants, but shall observe the provisions of clauses at mentioned Sl. No. iv and v above.

- x. The storehouse shall be situated at ground level without any mezzanine floor, upper floor or any basement, with the floor (plinth) level not less than 45 centimeters from the ground level and well ventilated.
- xi. The storehouse shall be with at least 23 centimeters thick walls built of bricks or stone mortar or concrete and with roof of RCC or asbestos or Fiber or GI sheet.
- xii. The storehouse shall have sufficient number of doors made of steel of minimum three millimeters thickness and opening outwards.
- xiii. The storehouse of stevedore may be a shed without side walls.
- xiv. Any storehouse used for possession for sale or possession for use of Ammonium Nitrate shall have a floor area not less than one square metre per 2.5Metric Tonne of Ammonium Nitrate and the storehouse total holding capacity shall not exceed 5000 MT storage. One stack of bagged Ammonium Nitrate shall not exceed 500MT and a minimum clearance of two metres shall be maintained between the adjacent stacks and at least 0.6 metre wide gangway shall be maintained between the stacks and the wall of the storehouse.
- xv. On and from the commencement of the Ammonium Nitrate (Amendment) Rule, 2021, all flooring in Ammonium Nitrate storage and handling area shall be without open drains, traps, pits or pocket into which any molten Ammonium Nitrate is able to flow and be confined in the event of fire and the Ammonium Nitrate storage sheds licensed prior to publication of Ammonium Nitrate (Amendment) Rules, 2021 shall adopt the same within one year from the date of publication of that rules. (Rule 12 (6) (a).
- xvi. The maximum stack height shall not exceed 4.0 metres from the floor level and the same shall be prominently marked on the wall of the storehouse.
- xvii. The storehouse shall be protected against lightning as per IS 2309.

- xviii. The storage tank meant for storage of Ammonium Nitrate melt shall be constructed of stainless steel and single storage tank capacity shall not exceed 200 MT and the distances of storage tank with respect to the storehouse wall and protected work shall be applicable as in the case of storehouse.
- xix. No person below the age of 18 years and who is addicted to intoxication or of unsound mind or who is mentally or physically challenged shall be employed, allowed or engaged by the licensee for manufacture, conversion, bagging, storage, sale, loading, unloading or transport of Ammonium Nitrate or to enter any premises permitted under these rules- Rule -6 (8).
- xx. No toxic, corrosive, or flammable or otherwise dangerous substances such as carbonaceous matter, reducing agents, petroleum, carbide of calcium, compressed gases or any other chemical which may react with Ammonium Nitrate in a manner that may result in an explosion shall be allowed in the premises meant for manufacture, conversion, bagging, storage, import, export, transport or handling of Ammonium Nitrate - Rule-6(9).
- xxi. Adequate fire fighting facility as per National Fire Protection Association (NFPA)- 490 shall be provided at Ammonium Nitrate storage and handling premises- Rule-11 (5).

4. DOCUMENTS TO BE SUBMITTED FOR OBTAINING LICENCE/ NOC (ALL IN SIX SETS) RULE-33:

- i. Application form (Form No. A-3 as per Part-I of Schedule-II of the Ammonium Nitrate Rules, 2021) for licence to possess for sale or use of Ammonium Nitrate from a store house not exceeding 30MT or license to possess for use of Ammonium Nitrate for agricultural purposes from a storehouse (Copy of the form enclosed at **Annexure-A**).
- ii. Application form (Form No. A-4 as per Part-I of Schedule-II) of the Ammonium Nitrate Rules, 2021 for licence to transport Ammonium Nitrate from a store house not exceeding 30MT (Copy of the form enclosed at **Annexure-A-1**).

- iii. Prescribed affidavit along with self-attested photographs attested by the notary along with the documents (Copy of the affidavit enclosed at **Annexure-B**).
- iv. Safety and Security Management Plan prepared as required under Rule 15.
- v. Three sets of drawings of the proposed/existing storehouse and attached facilities and the site showing approach road with all protected works in and around.
- vi. Documentary evidence in respect of company or partnership firm or society including list of directors or partners or office-bearers, as the case may be, including nomination of the authorized signatory with their specimen signatures.
- vii. Six passport size photographs of the occupier signed by him in the front alongwith documentary evidence of nomination as occupier.
- viii. Photograph of the premises from all directions depicting the clearance from other storehouse of similar nature and the protected work, if any.
- ix. Proof of residence.
- x. Proof of ownership of the proposed storehouse.
- xi. In case of a rented premises, a copy of rent agreement along with NOC from the landlord on the affidavit (**Annexure-C**) duly attested by the notary public/civic agency with photographs of the landlord and the tenant.
- xii. A scrutiny fee for prior approval of Rs. 1000/- (non-refundable) to be paid through debit/credit card at the fee counter of Licensing Unit- Rule-29(a).
- xiii. The particulars of persons employed for handling of Ammonium Nitrate, their qualification and experience. The applicant shall file an affidavit regarding their antecedents (**Annexure-D**).
- xiv. The certificate of completion of storehouse and attached facilities duly endorsed by the applicant (Rule-33 (2) (d)).

5. PROCEDURE FOR GRANT OF LICENCE

- i. The application form for the Ammonium Nitrate licences shall be available free of cost in the office of Joint/Additional Commissioner of Police, Licensing, Delhi in the prescribed format. It shall also be made available for download on the website of Delhi Police Licensing Unit.
- ii. The application form duly filled along with all the required documents will be submitted at the Office of Joint/Additional Commissioner of Police, (Licensing).
- iii. A register will be maintained listing out the date of receipt of each application and each application has to be given a specific number.
- iv. All the documents will be scrutinized as per the Check List **(Annexure-E)**.
- v. The following NOCs shall be sought to adjudge the suitability of place and applicant to carry out the trade:-
 - a) NOC from Fire Department:- To ascertain suitability of place from fire safety point of view in the interest of public safety at large and availability of the fire safety arrangements.
 - b) NOC from land owning agency:- Like MCD/DDA/NDMC/DUSIB/Delhi Cantonment Board to ascertain that the location of the storehouse/premises in the Commercial area as per Master Plan Delhi-2021 or any objection, if any, from municipal by-laws/land regulation point of view **(Annexure-F)**.
 - c) NOC from Local Police: - To ascertain suitability of the site from law and order point of view, verification of the antecedents of the applicant and handlers and verification of the documents submitted by the applicant on the proforma **(Annexure-G)**.
- vi. After receipt of above reports, inspection of the premises shall be conducted by an officer of the Licensing Unit as per **Annexure-H**.

- vii. All the above reports shall be put up to Joint/Addl. CP (Licensing). In case, all the reports are positive, he shall approve the issuance of Licence/NOC as the case may be.
- viii. The licence after due approval shall be issued as per **Annexure-I** and **Annexure-J**, which may be up to 5 years. A licence fee of Rs 2000/- per annum for license to possess for sale of Ammonium Nitrate from a storehouse and license to transport Ammonium Nitrate shall be charged while granting the licence respectively. A license fee of Rs. 1000/- per year for license to possess for use of Ammonium Nitrate from a storehouse shall be charged while granting the license.
- ix. No Objection Certificate in original alongwith drawings duly endorsed from the concerned District Authority, where the District Authority is not the License issuing Authority (Rule- 33 (2) (e) of the Ammonium Nitrate Rules-2021).
- x. The Joint/Additional Commissioner of Police, Licensing while refusing to grant licence/NOC shall record in writing the reasons for such refusal and communicate the same to the applicant. The applicant shall be given an opportunity of being heard before a decision to refuse the licence is taken (Rule -39 of Ammonium Nitrate Rules, 2021).
- xi. An appeal against the order of the Joint/Additional Commissioner of Police, Licensing, Delhi refusing to grant a licence or suspending or revoking a licence or varying the condition of a licence shall lie, with Special Commissioner of Police, Licensing, PHQ who will decide the appeal (Rule- 44 and 45 of the Ammonium Nitrate Rules-2021).

6. PROCEDURE FOR RENEWAL OF LICENCE

- i. The licence granted by District Authority (Joint/Addl. CP/Licensing) shall be renewed every five years.
- ii. Every application for the renewal of licence shall be made so as to reach the Licensing Authority to renew the licence on or before the date on which the licence expires and if the application is so made, the licence shall be deemed to be in force until an intimation that the renewal of the licence is refused has been communicated to the applicant (as per Rule-36, of the Ammonium Nitrate Rules-2012).

- iii. No licence shall be renewed if the application for renewal is received by the licensing or renewing authority after the date of its expiry.

7. PROCESSING TIME

On receipt of all the required documents from the applicant, NOCs shall be sought from the concerned department/Units within a week by the File Processing Officer. On receipt of NOC from all the departments/units, inspection shall be conducted within 15 days. Final decision shall be taken within a month by the Licensing Authority after completion of all the documents/reports.

8. DO's & DON'Ts FOR LICENCEES

- i. At least 10 sand bags must be kept in the premises. Additional sand bags depending upon the size of the premises are also required to be kept.
- ii. "No smoking" signboard should be prominently displayed in each licenced premises.
- iii. Adequate number of fire extinguishers capable of dealing with fire involving electric circuits, with other inflammable components shall be provided in the storehouse/transport of the Ammonium Nitrate.
- iv. No person shall commit or attempt to commit any act which may tend to cause to fire or explosion in or about any place where the Ammonium Nitrate is manufactured, converted, bagged, stored or transported.
- v. The premises used for storage of the Ammonium Nitrate shall not be used for storage of any other material including fertilizer.
- vi. The licensee shall maintain a safety and security management plan as per Rule-15 of the Ammonium Nitrate Rules-2021 and the conditions endorsed on the licence.
- vii. Fire Hydrants should be located in the selected areas with the help of fire officer. The Fire Department and Delhi Jal Board may be associated to ensure that the location is satisfactory, adequate water pressure is maintained and is usable when it is required.

- viii. Ammonium Nitrate shall not be used for display.
- ix. No licensee shall provide false or misleading information or declaration in any application made or statement submitted under these rules.
- x. No licensee shall falsify, erase or fraudulently alter any entry in any log book, document or other record required to be kept or maintained under these rules.
- xi. No licensee shall change or alter any license or other documents under the Ammonium Nitrate Rules.
- xii. The transport of Ammonium Nitrate in sensitive areas shall not be allowed during the period from sunset to sunrise. The movement of Ammonium Nitrate and the particulars of the origin and the destination of the consignment shall be informed to the concerned police authorities in writing.
- xiii. No licensee shall sell the Ammonium Nitrate from the pavement or any place outside of storehouse. Neither any licensee shall encroach the pavement or the abutting road with the goods/ Ammonium Nitrate bags nor will he place any sale counter on the pavement or the road.
- xiv. The licensee shall intimate in writing of any loss or theft involving the Ammonium Nitrate or Ammonium Nitrate melt in his possession where the loss exceeds the permitted limit of loss that typically occurs during routine productions, storage, transportation or use of Ammonium Nitrate to the Licensing Authority and concerned district authority giving details of circumstances leading to loss or theft and same to the concerned police station.

9. **ROLE AND FUNCTIONS OF ADDL. CsP/DCsP OF THE DISTRICT AND POLICE STATION**

Apart from ensuring that all the terms and conditions laid down in the Ammonium Nitrate Rules-2012 are followed, the following specific role and functions have been given to the Addl. CsP/District DCsP and police station under the Rules to ensure that:-

(A) **Role and functions at the level of Addl. CsP/DCsP of the District.**

- i. Monthly returns of all transactions of Ammonium Nitrate to the District Addl. CsP/DCsP before the 10th day of every succeeding month by the licensee as per **Annexure-K** (Rule-14 (3)).
- ii. Persons intending to manufacture, convert, stevedore, bag, possess for sale/use, transport, import or export should submit Safety and Security Management Plan to the Licensing Authority and to the District Authority with the security aspect duly vetted by the police authorities for approval (Rule-15(1)).
- iii. Receipt of intimation in Form R-11(a) as per Part-3 of Schedule-II from the consignor and consignee of Ammonium Nitrate/ Ammonium Nitrate Melt (**Annexure-L**). Receipt of pass in Form R-11(b) from the consignor and consignee of Ammonium Nitrate/ Ammonium Nitrate Melt (**Annexure-M**) (Rule- 20(3) and 20(4)).
- iv. Providing armed police escort or guard for vehicle carrying in notified sensitive districts (Rule-22(4)).
- v. All police officers of rank not below that of a SI of police to enter, inspect, examine, take samples of Ammonium Nitrate, search, seizure, detain and remove of any premises, the provision of the rules are contravened (Rule-50).

(B) **Role and functions at the level of Police station**

- i. Intimation to the local police by the Laboratories, educational/medical institutions, hospital/clinics on the quantity of Ammonium Nitrate (not more than 5Kg) under possession (Rule-3(3)).
- ii. Any unauthorized, unlicensed manufacture, conversion, stevedoring and bagging, transport, possession for sale or use of Ammonium Nitrate to be restricted (Rule-4).
- iii. To check that Ammonium Nitrate is not used for blasting either alone or in combination with other ingredients unless permitted under Explosive Rules (Rule-6(10)).
- iv. Police verification of antecedents of drivers or cleaners of vehicles engaged in transport of Ammonium Nitrate (Rule-22(1)).

- v. On receipt of report of accident, initiate remedial action (Rule-23(1)(b)).
- vi. Police verification of antecedents of authorized representatives of consignee of Ammonium Nitrate (Rule-27(3)).
- vii. Police verification of applicant desiring to obtain license (Rule-34, 2(a) and 38(e)).
- viii. All police officers of rank not below that of a SI of police to enter, inspect, examine, take samples of Ammonium Nitrate, search, seizure, detain and remove of any premises, the provision of the rules are contravened (Rule-50).
- ix. Receipt of report from the licensee on loss or theft of Ammonium Nitrate or Ammonium Nitrate Melt by the nearest police station (Rule-52).
- x. Receipt of notice of accidents communicated by licensee/occupier by the Officer-in-charge of the nearest police station within 24 hours (Rule-53(1)).

10. MAINTENANCE OF RECORDS AND SUBMISSION OF RETURNS (Rule-14):-

- i. Every person holding a licence granted under these rules for manufacture, conversion, stevedore, possession for sale or use, transport, import or export of the Ammonium Nitrate shall maintain records in the forms specified in Part-3 of Schedule-II to ensure accountability, identification and traceability of Ammonium Nitrate and shall produce such records on demand to an authority specified in Rule-50.

The licence holder shall enter the particulars on manufacture, conversion, stevedore, bagging, possession for sale or use, transport, import or export of Ammonium Nitrate in the online system made available in the official website of Petroleum and Explosive Safety Organization on day to day basis (Rule 14 (1 A)).

- ii. Paging of all the stock books in the forms specified in Part-3 of Schedule-II shall be done and certified by any officer authorized under these rules and such records shall be retained for a period of three years, unless otherwise directed by an authority.
- iii. The licensee shall submit monthly returns of the Ammonium Nitrate manufactured, converted, stevedored, received, sold,

transported, used, destroyed or imported or exported to the Licensing Authority i.e. Joint/Addl. CP/Licensing, District DCP in the prescribed form so as to reach the above authority on or before the 10th of every succeeding month.

- iv. The licence holder shall maintain record and make transaction and file returns by electronic means when directed by the licence issuing authority.

11. TRANSPORTATION OF AMMONIUM NITRATE (Chapter-V, Rule-20, 21, 22 & 23)

- i. Every consignment of Ammonium Nitrate or Ammonium Nitrate Melt transported shall be accompanied by a pass issued by the consignor in Form R-11(b) of Part-3 of Schedule-II.
- ii. The pass referred in sub rule- (a) shall be attached to the waybill, invoice or bill of entry or dispatch note as the case may be.
- iii. An intimation in Form R-11(a) as mentioned in Part-3 of Schedule-II shall be sent by the consignor at least twenty-four (24) hours in advance to the District Superintendent of Police/District Dy. Commissioner of Police of place of dispatch as well as to the District Superintendent of Police/Dy. Commissioner of Police of place of receipt.
- iv. A copy of every pass issued under sub-rule-(a) shall forthwith be sent by the consignor to:-
 - a) The Licensing Authority who issued the licence of the consignor
 - b) The District Authority having jurisdiction of the place of dispatch
 - c) The District Superintendent of Police/Dy. Commissioner of Police, in whose jurisdiction the place from which the consignment is sent is situated
 - d) The District Superintendent of Police/Dy. Commissioner of Police in whose jurisdiction the place to which the consignment is sent is situated.

- v. The Ammonium Nitrate of Ammonium Nitrate Melt shall be transported only by consignors holding valid licence in Form P-4.
- vi. The tanker for transportation of Ammonium Nitrate melt shall be constructed of stainless steel, as approved by the Controller of Explosives. The tanker should not exceed the maximum load limit prescribed by the Road Transport Authority. The design of inlet/outlet valves and vent pipes should be so designed to prevent pilferage of the product.
- vii. Ammonium Nitrate shall not be transported along with any other material including hazardous material.
- viii. The Ammonium Nitrate shall be transported duly secured vehicles and covering by layers of tarpaulin under the seal of the transport license holder and it shall be ensured that the driver or any attendant thereof has in his possession the copy of indent in Form R-10 issued by the consignee, copy of transport pass in Form R-11 (b) issued by the consignor and the original copy of bill or bill of entry of Ammonium Nitrate being transported. These documents shall be produced by the transporter on demand by the authority.
- ix. The consignor shall ensure delivery of consignment of Ammonium Nitrate to storehouse of the consignee at the declared destination and the Form R-11(b) duly acknowledged by the consignee be retained as recode by the consignor.
- x. The vehicles engaged in transport of the Ammonium Nitrate shall be attended by only such drivers or cleaners, whose antecedents are verified by the local police and a list of such drivers or cleaners along with all personal particulars should be made available to the local police in advance to carry out the verification and the re-verification of such drivers or cleaners should be carried out at regular intervals once in five years-Rule-22.
- xi. The vehicles carrying Ammonium Nitrate shall be accompanied by at least two able bodied guards and the vehicle shall not be stopped for a longer period than is reasonably required, and shall avoid stops at places where public safety is likely to be in danger. In case of parking of the vehicle due to break down etc., the local police shall be informed.

- xii. A vehicle while transporting Ammonium Nitrate shall be adequately secured at the expense of the licence holder and if the consignment of Ammonium Nitrate is likely to pass through sensitive areas notified by MHA, it should be escorted by armed police escort or guard, provided by the district police. The transport of Ammonium Nitrate in sensitive areas shall not be allowed during the period from sunset to sunrise. The movement of Ammonium Nitrate and the particulars of the origin and the destination of the consignment shall be informed to the concerned police authorities in writing.
- xiii. Every vehicle transporting Ammonium Nitrate shall be provided with two fire extinguishers of ISI Mark in good working conditions of minimum five Kilogram capacity and one of the extinguishers shall be capable of dealing with fire involving electric circuits and the other, with other inflammable components.
- xiv. Nothing contained in Rules 20, 21, 22 and 23 shall be applicable for transport of solid Ammonium Nitrate, possessed/purchased by persons permitted/holding valid licence under these rules for quantities not exceeding 50 kilograms.

12. PROSECUTION

- i. All the Districts and PCR will maintain a record of the fire accidents in the storehouse/transport vehicle of Ammonium Nitrate. Necessary intimation about the above shall be sent to the Joint/Additional Commissioner of Police, Licensing Unit, Delhi Police as well as Controller of Explosives/Nagpur or Joint Chief Controller of Explosive, Department of Explosives, GOI, Hall No. 502 & 507, B-Block, Old CGO Complex, NH-4, Faridabad, Haryana, immediately.
- ii. Necessary legal action against any person found in possession or selling explosives/fireworks without a licence as required under rule 25 of the Ammonium Nitrate Rules, 2012 shall be taken by the local police in accordance with section 9 (b) of the Explosives Act, 1884.

It shall be duty of the concerned Addl. CsP/DCsP of District to ensure that all the laid down conditions are abided by the licencees on the ground and action is initiated as soon as any violation is noticed. It shall be onerous duty of district police to ensure that no mishap occurs and area is kept safe and secure from any fire hazard.

13. SUPERSESSION CLAUSE

This Standing Order supersedes the previous Standing Order No. 426/2013 issued vide No. 4341-4462/Record Branch/PHQ dated 20.5.2013.

14. DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.

Rakesh Asthana

(RAKESH ASTHANA)
COMMISSIONER OF POLICE:
DELHI.

28.4.2022

No. 18101 - 18250 /Record Branch/PHQ dated Delhi, the 28/04/2022

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
10. HAR/PHQ.
11. Librarian/PHQ.

FORM A-3

(See Part 1 of Schedule II, rules 33, 35 and 37 of Ammonium Nitrate Rules, 2012)

**APPLICATION FOR APPROVAL OR GRANT OR AMENDMENT OF
LICENCE FOR POSSESSION AND SALE OR USE OF AMMONIUM
NITRATE**

Please affix a
recent passport
size colour
photograph of
occupier with
signature in
front

Purpose (tick any one): Approval ☐ Grant ☐ Amendment ☐

1. Licence sought for (tick any one):

☐ (a) Licence to possess for sale of Ammonium Nitrate from a store house or a tank not exceeding 30 MT; or

☐ (b) Licence to possess for sale of Ammonium Nitrate from a store house or a tank exceeding 30 MT; or

☐ (c) Licensee to possess for use of Ammonium Nitrate from a store house or a tank attached to explosive/ANFO/Nitrous Oxide manufacturing unit; or

☐ (d) Licence to possess for use of Ammonium Nitrate for agriculture purpose from a store house not exceeding 3 MT.

2. Type of applicant (tick any one): Individual ☐ Company ☐
Partnership Firm ☐ Society ☐ Proprietary Firm ☐

3. Applicant's detail:

(a) Name in which licence is sought (see note below).....

(b) CIN No./Firm registration No. (in case of company/Firm).....

(c) Age in case of individual..... Aadhar No.....

(d) Postal address.....

.....
City.....District.....State.....

Pin Code.....

Phone No. with STD code..... Mobile No.....

E-mail.....

4. Address of the proposed premises:

Survey No. /Gat No./Khasra No.

Town/Village.....Mandal/Taluk/tehsil.....

.....Railway Station

Police station District.....

StatePin Code.....

5. Qualification and experience of applicant and technical personnel employed by him.
(Give individual's details and attach separate sheet if required)
.....
6. Quantity of Ammonium Nitrate proposed to be possessed at any one time:.....MT.
7. Quantity of Ammonium Nitrate proposed to be sold in a day:.....MT.
8. Quantity of Ammonium Nitrate proposed to be sold in a month:.....MT.
9. Quantity of Ammonium Nitrate proposed to be used in a day:.....MT.
10. Quantity of Ammonium Nitrate proposed to be used in a month:.....MT.
11. Are the premises attached to the factory licenced to manufacture of explosive/nitrous oxide? Yes ☐ No ☐
12. Details of amendment proposed or additional information.....
.....
.....
13. (a) Particulars of the other licences under Explosives Act, 1884, if any held by the applicant during the last ten years.....
.....
.....
(b) Was any licence cancelled or not renewed? Yes ☐ No ☐
If yes give details.....
14. (a) Has the applicant been convicted under any offence or ordered to execute bond under Chapter VIII of Code of Criminal Procedure, 1973, during the last ten years? Yes ☐ No ☐
(b) If yes, give details:
15. Fee details
16. List of documents attached:

I hereby certify that the above particulars given by me are correct.

Date.....
Place:.....

Signature of applicant in the
box above

Full Name.....
(Authorized person in case of company)

Notes- Please see the rules for the purpose and documents to be attached.

(1) In case where application is made by a person other than individual, the name and address of the occupier as per rule 2 and directors or partners or members, as the case may be and specimen signatures of authorized person to be attached.

(2) Six copies of the passport size signed colour photographs of the occupier to be attached.

(3) Any change in the above information should be immediately communicated to the licensing authority and authority renewing the licence.

*Statutory Warning---*Mishandling and misuse of Ammonium Nitrate shall constitute serious criminal offence under the applicable law.

FORM A-4

(See Part 1 of Schedule II, rules 33, 35 and 37 of Ammonium Nitrate Rules, 2012)

**APPLICATION FOR GRANT OR AMENDMENT TO TRANSPORT
AMMONIUM NITRATE**

Please affix a
recent passport
size colour
photograph of
occupier with
signature in front

Purpose (tick any one): Approval ☐ Grant ☐ Amendment ☐

1. Type of applicant (tick any one): Individual ☐ Company
Partnership Firm ☐ Society ☐ Proprietary Firm ☐

2. Applicant's detail:

(a) Name in which licence is required to be granted (see note below).....

(b) Status (Please tick): Individual ☐ Company ☐ Partnership Firm
☐ Society ☐ Proprietorship Firm ☐

(c) CIN No./Firm registration No. (in case of company/Firm).....

(d) Age (in case of individual).....Aadhaar
No.....

(e) Postal address.....
.....
City.....District.....State.....PIN
Code.....

(f) Phone No. with STD code..... Mobile No.
E-mail.....

3. Qualification and experience of applicant:
.....

4. Particulars of places from where and to Ammonium Nitrate to be transported:

(a) Manufacturing factory situated at
to all India.

(b) Port name.....to the premises of Stevedore situated
at

(c) Port name.....to the storehouse situated at
.....

(d) Stevedore's premises at.....to storehouses.

(e) Store house situated at
to all India.

(f) Store house situated at..... within/to the state/
Districts of.....

5. Particulars of licences held by the applicant under Explosives Act, 1884:

(a) Ammonium Nitrate manufacturing Licence No. (if
applicable).....

- (b) Srevedore's Licence No. (if applicable)
- (c) Licence No. of storehouse:
- (i) Possession & sale.....
- (ii) Possession & use.....
6. Mode of transport:
7. (a) Has the applicant held other licences under Explosives Act, 1884 in the last ten years? (Y/N)
- (b) Has any licence held by applicant been cancelled or not renewed in the last ten years? (Y/N)
- (c) Has the applicant been convicted under any offence or ordered to execute bond under Chapter VIII of Code of Criminal Procedure, 1973, during the last ten years? Yes ☐ No ☐
- If answer is yes to any of the question above, give details
-
-
8. Fee details.....
9. List of documents attached:

I hereby certify that the above particulars given by me are correct.

Date:.....

Signature of applicant
in the box above

Place:.....

Full Name.....
(Authorised person in case of company)

Note:- Please see the rules for the purpose and documents to be attached

- (1) In case where application is made by a person other than individual, the name and address of the occupier as per rule 2 and directors or partners or members, as the case may be and specimen signatures of authorized person to be attached.
- (2) Six copies of the passport size signed colour photographs of the occupier to be attached.
- (3) Any change in the above information should be immediately communicated to the licensing authority and authority renewing the licence.
- (4) Copy of licence held in Form P-1, P-2, P-3 or P-5 of Ammonium Nitrate Rules, 2012.

Statutory Warning—Mishandling and misuse of Ammonium Nitrate shall constitute serious criminal offence under the applicable law.

AFFIDAVIT

(Specimen of affidavit to be submitted by applicants on non-judicial stamp paper of worth Rs. 10/- duly attested by a Notary Public for the grant of Ammonium Nitrate license)

Affix self
attested photo

I _____ Son/Daughter/Wife of _____ presently residing at _____ since _____ on behalf of M/s _____ (if any firm/company is applying) do solemnly affirm and declare as follows:

1. That my date of birth is _____ (Attach copy of proof).
2. That I am serving in M/s _____ (in case of employee/authorized signatory on behalf of any firm/company).
3. That I/we permanent resident/office of M/s at _____
4. That I/we have applied for the storage of Ammonium Nitrate (give details) _____ at _____
5. That I am/was not involved in any criminal case.
6. That I/we have never been externed from my place of stay by any judicial authority and neither am I a proclaimed offender of any state Govt. or of Delhi Police, and to the best of my knowledge there is no Red Corner Notice or any other Look Out notice pending against me.
7. That I/we have also no proceedings/cases instituted against me in the CBI, NCB, Enforcement Directorate, Directorate of Revenue Intelligence, Income Tax and Forest Department pending against me.
8. That I/we have also not been arrested, deported or involved in any illegal act in any other country where I have visited or resided.

9. That I/we have any/no Ammonium Nitrate license issued from any state in India. If yes, give details and attached documents in this regard.
10. That I/we have applied for Ammonium Nitrate license previously_____ times. (If yes, enclosed copy of earlier license issued in favor of the applicant or the proposed premises.)
11. That I have applied for grant of License for Ammonium Nitrate on Form-A-3for storage/sale and/or Form- A-4 for transportation of Ammonium Nitrate as provided in "The Ammonium Nitrate Rules, 2012" to the Licensing Branch (i.e. Joint/Addl. Commissioner of Police Licensing Unit Delhi Police).
12. That I/we have submitted following documents:-
- That I am attaching herewith all the required documents as prescribed in Rule, 33 of Ammonium Nitrate Rules, 2012.
 - Request letter/Application of the applicant with full detail of the Quantity applied for.
 - Land ownership proof/property documents of premises/Sale deed/lease deed/allotment deed duly signed by the applicant (6 copies).
 - Rent agreement/NOC from land lord, in case of tenant.
 - Site plan/ key plan attested by an authorized architect of the proposed site duly verified by the applicant (6 Copies).
 - In case applicant is an employee/representative of any firm/company, an authority letter in favour of applicant or signing authority/person issued by the firm/company.
13. That I/we will follow the conditions, which may be imposed, by the Chief Fire Officer or any other authority from time to time will have to be observed strictly.
14. That I/we will do nothing in contravention to the conditions as laid down in Notification No.1028 dated 27 Sep. 2005 issued by DDA.

15. That I shall provide sufficient number of security guards at my own expense for safe custody of Ammonium Nitrate in the licensed premises.
16. That I shall provide a shelter for the security guard(s) for a storehouse, on duty near the storehouse at a suitable location not less than 30 meters away from the store house except for storehouse attached to the manufacturing plants.
17. That I shall comply with the conditions with respect to safety distance as mentioned in Rule-12 of Ammonium Nitrate Rules, 2012.
18. That I shall implement the safety and security management plan as described in Rule-15 of the Ammonium Nitrate Rules, 2012.
19. That I shall not employed any person below the age of 18 years and who is addicted to intoxication or of unsound mind or who is mentally or physically challenged.
20. That I shall not allowed any toxic, corrosive or flammable or otherwise dangerous substances such as carbonaceous matter, reducing agents, petroleum, carbide of calcium, compressed gases or any other chemical which may react with Ammonium Nitrate in a manner that may result in an explosion the premises meant for manufacture, conversion, bagging, storage, import, export, transport or handling of Ammonium Nitrate.
21. That Adequate fire fighting facility as per NFPA 490 shall be provided at Ammonium Nitrate storage and handling premises.
22. That I shall comply with all the directions issued by State/Central Govt. time to time in connection with regulations of Ammonium Nitrate or its operations.

DEPONENT

AFFIDAVIT

(Specimen of NOC to be issued by the owner of the property to the applicant, in case the storehouse is a rented premise, on non-judicial stamp paper of worth Rs. 10/- duly attested by a Notary Public.)

N.O.C.

Self-attested photograph
of the owner

Self-attested
photograph of the
tenant

1. I,..... Son/Daughter/Wife of _____ presently residing at since is the absolute owner of property bearing No.....situated atDelhi.
2. That my date of birth is
3. That I have rented out my property/portion of property to Sh..... or M/s.....for the purpose of storehouse for Ammonium Nitrate.
4. That I have no objection if the applicant Sh..... or M/S uses my property for storage/sell/use of Ammonium Nitrate.

DEPONENT

AFFIDAVIT

(Specimen of affidavit to be issued by the applicant regarding his employees handling Ammonium Nitrate on-judicial stamp paper of worth Rs. 10/- duly attested by a Notary Public.)

Photograph of the
employee

1. I, _____ Son/Daughter/Wife of _____ presently residing at _____ since _____ on behalf of M/s _____ (if any firm/company) do solemnly affirm and declare as follows:
2. That my date of birth is _____
3. That I have applied for storage/use/sale of Ammonium Nitrate at the premises situated at _____ (give details)
4. That I have employed following person/s (Give details separately if more than one employee) to handle Ammonium Nitrate at my storehouse.
5. The particulars about my employee/s are as under to the best of my knowledge and that nothing has been hide about his antecedents.
 - a) Name of the employee _____
 - b) Aliases, if any: _____
 - c) Father's Name _____
 - d) Date of Birth : _____
 - e) Temporary Address, Mention clearly whether tenant: _____

- f) Permanent Address (Same as in Election Card/Ration Card):

- Residing since: _____
- g) Duration of Stay: - at permanent address : _____
- at temporary address : _____
- h) Education: _____
- i) Experience, if any, to deal with Ammonium Nitrate: _____
- _____
- j) Telephone No. _____ Income Tax/PAN No. _____
- _____
- k) He is not involved in any criminal case, as per my knowledge.
6. That I have got his police verification from my jurisdictional Police Station _____ (Attach copy of police verification)
7. That I shall comply with all the directions issued by State/Central Govt. time to time in connection with regulations of Ammonium Nitrate or its operations.

DEPONENT

CHECK LIST OF DOCUMENTS

<u>Sr. No.</u>	<u>Document</u>	<u>Yes/No</u>	<u>Remarks</u>
1.	Application Form A-3 for sale or use of Ammonium Nitrate from a storehouse not exceeding 30 MT, as per Rule 33 of Part-I of Schedule-II, The Ammonium Nitrate Rule, 2021. (Annexure-I)		
2.	Application form (Form No. A-4 as per Part-I of Schedule-II) of the Ammonium Nitrate Rules, 2021 for licence to transport Ammonium Nitrate from a store house not exceeding 30MT. (Annexure-II)		
3.	In case of a rented premises, a copy of rent agreement alongwith NOC from the landlord on the affidavit duly attested by the notary public/civic agency with photographs of the landlord and the tenant.(Annexure-III)		
4.	Affidavit regarding antecedents of persons employed for handling of Ammonium Nitrate, their qualification and experience. (Annexure-IV)		
5.	NOC from Fire Department		
6.	NOC from Land owing agency		
7.	NOC from Local Police		
8.	Inspection Report of the Licensing Officer		
9.	Two self attested photographs of the applicant		
10.	Proof of ownership.		
11.	Site plan of the premises. The site plan should clearly show the approach road, electric wiring network, nearby structures and distances from nearby protected works as well as other storehouse.		

12.	Photograph of the premises from all directions depicting the clearance from other shops of similar nature, if any		
13.	Proof of residence		
14.	Partnership deed alongwith property papers (in case of partnership case)		
15.	2 ID Proof i.e. Aadhar Card, PAN Card & Residence proof.		
16.	Bank Certificate details in respect of Current Accounts of the Firm		
17.	GST Registration.		
18.	Medical Certificate		
19.	Any licence issued earlier in favour of the applicant or the proposed premises for Ammonium Nitrate.		
20.	Fees		

**FORMAT OF NOC TO BE ACCEPTED FROM THE LAND OWNING
AGENCY I.E. MCD/DDA/NDMC/DCB/DUSIB**

Letter No.

Address of the Premises:

Inspection Proforma:

Sr. No.	Points	Remarks
1	Whether the shop/premise falls in the category of commercial area as per MPD-2021	
2	Whether the shop/premises is as per the provisions of Municipal by laws.	
3	Whether the site falls in the category of illegal encroachment/demolition plan.	
4	Whether the shop/premise is as per building by-laws.	
5	Whether the applicant has adequate fire fighting facility as per NFPA 490 for storage and handling of Ammonium Nitrate. See rule-11 (5) of Ammonium Nitrate Rules, 2021.	
6	Any other remarks	

Signature of the NOC Issuing Officer (with seal)

Name:

Designation:

PROFORMA FOR POLICE VERIFICATION

Particulars of Applicant

1. Name of the applicant _____
2. Aliases, if any: _____
3. Father's Name _____
4. Date of Birth : _____
5. Temporary Address, Mention clearly whether tenant:

6. Permanent Address (Same as in Election Card/Ration Card):

Residing since: _____
7. Duration of Stay: - at permanent address : _____
at temporary address : _____
8. Occupation (Profession/Business/Govt./Private Service/Doctor etc.) _____
Telephone No _____ Income Tax/PAN No. _____
9. Name of the Organization/Institution _____
10. Name of authorized officer/Board Member _____
11. Registered address: _____
12. Telephone No _____ Income Tax/PAN No. _____
13. (a) Quantity of Ammonium Nitrate proposed to be possessed/used and sold _____
(b) Purpose of possessing Ammonium Nitrate _____
14. Name of nominee, relationship and address _____

15. Addresses and Date of Birth verified give details_____
16. Occupation of the applicant as verified give details_____
17. Whether any complaint filed against the applicant? If yes give details_____
18. Involvement in criminal cases? If yes, give details:-

19. Whether arrested in any criminal cases? If yes, give details

20. Whether convicted in any criminal? If yes, give details_____
21. Whether acquitted in any criminal case, if yes what are the grounds (As per the details of register No.9 of P.S) give details

22. Whether preventive proceedings initiated to bound down the applicant for keeping good behaviour under Cr PC & D.P Act

23. Does the applicant figure on the BC list of the police station (as per details of register No.10 of the police station)? If yes give details_____
24. Does the name of the applicant figure in Register No. 17 of P.S.? if yes give details _____
25. Has the applicant been involved in cases with any other agency like CBI, Narcotics Control Bureau, D.R.I, Enforcement Directorate etc., which is in the knowledge of the SHO vide D.D entries of the P.S. for service of summons, execution of warrants etc.? if yes give details_____

26. Has the applicant filed any complaint regarding threat to his life or his family? If yes, give details _____

27. Verification of nominee (if any) _____
28. Any other remarks _____

Signature of SHO
(Write Full Name, Date and affix stamp)

PROFORMA FOR INSPECTION OF THE PREMISES

For Storage/sale/use of Ammonium Nitrate.

1. a) Sh. (In case of individual applicant) _____
b) Name of the organization/Institution: _____
c) Name (s) of the proprietor / partners _____
2. Contact Numbers _____
3. Ammonium Nitrate Licence to be issued by _____
4. Purpose of possessing Ammonium Nitrate: _____
5. Date & time of inspection _____
6. Quantity of Ammonium Nitrate authorized: _____
7. During checking/(or applied for in case of fresh licence application)
8. Fire safety requirements for premises involving sale/ storage/use of Ammonium Nitrate. (See Rule, 11 (5) of Ammonium Rules, 2021.
 - a) Number of Fire extinguishers _____
 - b) Number of sand bags available _____
 - c) Width of the road _____
 - d) Distance from other storehouses (See rule-12) _____
 - e) Is the Safety and Security Management Plan available, as per rule 15 _____
 - f) Type of Electric wiring and electric fitting _____
(Conduit/concealed / Spark proof/Loose)

- g) Any other trade/mercantile along with Ammonium Nitrate, if so, the details thereof _____

- h) Any Child labour _____
9. Whether the premises/shop is located on a commercial street or in a commercial shopping centre as per Master Plan Delhi-2021

10. Construction features:-
- a) Whether premises is at ground floor _____
- b) Whether premises has independent entrance and exit _____
- c) Whether premises is used only for possession and sale of Ammonium Nitrate and not used for other purposes

- d) Whether upper floor are used for dwelling _____
11. Signage Board like No Smoking Board/ Yes/No
12. DO's & DON'T's displayed Yes/No
13. Any other discrepancy noticed _____

Rank, Name and Signature of Inspecting Officer

LICENCE FORM P-3

(Sl. No. 3 (a) and (d) of Schedule-I and rule 35 of Ammonium Nitrate Rules, 2016)

**LICENCE TO POSSESS FOR SALE OR USE OF AMMONIUM NITRATE
FROM A STORE HOUSE AND TO POSSESS FOR USE OF AMMONIUM
NITRATE FOR AGRICULTURE PURPOSE**

Photograph
of the
licence
holder or
occupier
with
signature.

Licence No. _____

Annual Fees Rs. _____

- (a) Licence to possess for sale or use of Ammonium Nitrate from a store house not exceeding 30MT; or
- (b) Licence to possess for sale or use of Ammonium Nitrate from a store house exceeding 30MT; or
- (c) Licence to possess for use of Ammonium Nitrate from a store house attached to explosives manufacturing / Nitrous Oxide manufacturing unit; or
- (d) Licence to possess for use of Ammonium Nitrate for agricultural purpose from a store house.

1. Licence is hereby granted to Mr/Smt _____ Postal
Address _____
City _____ District _____
State _____ Pin Code _____
Police Station _____ Railway Station/ Steamer
Ghat _____ Phone _____
E-Mail _____ Fax _____
2. Status of licence holder: _____ Individual or Company
3. Licence is valid for the following purpose: _____
4. (a) Licence is valid for _____ quantity of Ammonium Nitrate at any one time.

- (b) Quantity of Ammonium Nitrate to be purchased in a financial year_____
- (c)Quantity of Ammonium Nitrate to be purchased in a financial year_____
5. The licenced premises shall conform to the following drawing (s):
Drawing No. _____ dated _____
6. The licenced premises are situated at the following address:-
 _____ City _____ District
 _____ State _____ Pin Code _____
 Police Station _____ Railway Station/Steamer Ghat
 _____ Phone _____ E-mail
 _____ Fax _____
7. The licenced premises consist of following facilities:-

8. The licence is granted subject to the provision of Explosives Act 1884 as amended from time to time and Ammonium Nitrate Rules, 2012 framed there under and the conditions, additional conditions and the following annexure:-
- (a) Drawings (showing site, constructional and other details) as stated in serial no. 5 above.
- (b) Conditions and additional conditions of this licence signed by the Licence Issuing authority
9. This licence shall remain valid till 31day of March_____

This licence is liable to be suspended or removed for any violation of the Explosives Act 1884 or Ammonium Nitrate Rules, 2012 framed there under or the conditions of this licence, if the authorized premises are not found conforming to the description shown in the plans and annexure attached hereto.

Signature, Designation and seal of licensing
Dated the_____

SPACE FOR ENDORSEMENT OF RENEWALS

Statutory Warning: Mishandling and misuse of Ammonium Nitrate shall constitute serious criminal offence under the law.

CONDITIONS

- 1) The Ammonium Nitrate shall be possessed only in the licenced store house or melt storage tank showing the approved plan attached with the licence.
- 2) The quantity of Ammonium Nitrate in the premises or any part thereof shall not exceed at any one time the quantity for which licence has been issued.
- 3) Spilled or sweepings of Ammonium Nitrate the waste Ammonium Nitrate collected from sweeping or spilled shall be destroyed by the licence holder and account here of shall be maintained indicating the quantity of the Ammonium Nitrate destroyed.
- 4) The licence holder and every person employed shall take all due precautions for prevention of accidents by fire or explosion in the licenced premises and for preventing unauthorized person from having access to licenced premises and shall abstain from any act form whatsoever which tends to cause or explosion and is not reasonably necessary for the purpose of works related thereto.
- 5) No additions and alterations shall be carried out in the licenced premises without a previous sanction in writing of the Licensing Authority. Such additions and alterations so sanctioned shall be shown in the amended plan attached to the licence.
- 6) The licence holder shall appoint a competent person to supervise them manufacturing, conversion process and the operations shall be conducted under the supervision of the competent person.
- 7) Free access to the licenced premises shall be given at all reasonable time to any inspecting or sampling officer and all facilities shall be afforded to the officer for ascertaining that the provisions of the Act and these rules and the safety conditions are duly observed.

- 8) If the licensing issuing authority or the inspecting officer informs in writing, the holder of the licence to execute any repairs or to make any additions or alterations to the licenced premises or carry out recommendations, which are in the opinion of such authority may pose unacceptable risk and therefore the same is necessary for the safety or security of the premises or persons, the holder of the licence shall Execute the recommendations and report compliance within the period specified by such authority.
- 9) Accidents by fire or explosion and losses, shortage or theft or Ammonium Nitrate shall be immediately reported to the nearest police station and the licensing authority and local office of the licensing authority.
- 10) Licence holder shall maintain records in the prescribed forms specified in Schedule I Part 3 to ensure accountability, identification and traceability of Ammonium Nitrate and shall produce such records on demand to authority specified in Rule-49.
- 11) The licence holder shall submit monthly return of Ammonium Nitrate received, sold/used and destroyed in the form prescribed in Form R-9 of Part 3 of Schedule II so as to reach Licensing Authority and District Authority within 10th day of every succeeding month.

**Signature, Designation and
Seal of Licensing Authority.**

LICENCE FORM P-4

(Sl. No. 4 of Schedule-I and rule 35 of Ammonium Nitrate Rules, 2016)

LICENCE TO TRANSPORT AMMONIUM NITRATE

Photograph of
the licence
holder or
occupier with
signature.

Licence No. _____ Fees Rs. _____ (Per year)

1. Licence is hereby granted to Mr/Smt. _____
to transport Ammonium Nitrate.
2. From the premises licenced in Form bearing licence No. _____
Situating at _____ to places specified below:-
Places of destination:-

Sl. No.	Place	District	State

Subject to the provisions of the Explosives Act 1884 and the Ammonium Nitrate Rules, 2012 framed there under and to the conditions of this licence.

3. Postal address of licensee: _____

4. This licence shall remain valid till 31 day of March _____

This Licence is liable to be suspended or removed for any violation of the Explosives Act- 1884 or Ammonium Nitrate Rules, 2012 framed there under or the conditions of this licence.

Signature, Designation and Seal of
Licensing Authority

Dated the _____

SPACE FOR ENDORSEMENT OF RENEWALS

Statutory Warning: Mishandling and misuse of Ammonium Nitrate shall constitute serious criminal offence under the law.

CONDITIONS:

- 1) This licence becomes void on the expiration of the terms and mentioned therein or if a consignment breaks before reaching the place of destination or if the Ammonium Nitrate is taken from or to any place other than the places mentioned in the licence.
- 2) The licensee shall transport only Ammonium Nitrate as he is authorized to possess under the Act and the Ammonium Nitrate Rules, 2012 framed there under.
- 3) The quantity of Ammonium Nitrate dispatched to any consignee shall not exceed the quantity which such consignee is entitled to possess under a licence granted under these rules.
- 4) Each consignment of Ammonium Nitrate shall be covered by a pass in Form R-11(B) and that (when the Ammonium Nitrate is transported by rail) such pass shall be attached to the way bill or the invoices as the case may be.
- 5) A copy of each pass issued for each consignment shall be sent to:-
 - (i) Licensing Authority.
 - (ii) Controller of Explosives in whose jurisdiction the premises from which the consignment is sent, is situated, and
 - (iii) The Controller of Explosives in whose jurisdiction the premises to which the Ammonium Nitrate are sent is situated.
- 6) Any loss, shortage or theft of Ammonium Nitrate in transit shall be reported without delay to the licensing authority and to the police station and to the Controller of Explosives in whose jurisdiction the loss, storage or theft is discovered.

- 7) The Ammonium Nitrate shall be packed and marked in accordance with rules 8 and 9 of the Ammonium Nitrate Rules, 2012.

ADDITIONAL CONDITIONS

- 1) This licence is not transferable.
- 2) This licence or its authenticated copy shall at all times be kept in the transporting vehicle and produced on demand by an inspecting officer.
- 3) Ammonium Nitrate shall not be transported with any other explosives, inflammable substances, oil, carbonaceous matter etc.
- 4) The driver or operator of the vehicle carrying or containing an Ammonium Nitrate shall not stop unnecessarily or for a longer period than is reasonably required, and shall avoid stops or places where public safety is in danger.

Provided that where vehicle transporting or containing Ammonium Nitrate is parked overnight due to breakdown of vehicle or melt tanker or any reasons beyond the control of the driver, the premises in which the vehicle is parked:-

- (a) Shall not be used for any purpose that might give rise to the presence there in of an open flame, matches or any substance or article likely to cause explosion or fire;
- (b) Shall be away from any habitation of any godown containing articles or a flammable nature or other hazardous goods.

Provided further that the nearest police station shall be informed about the location and temporary parking of the vehicle.

- 5) Vehicle while transporting Ammonium Nitrate shall be adequately secured at the expense of the licence holder. If the consignment of Ammonium Nitrate is likely to pass through sensitive areas notified by the Ministry of Home Affairs, it should be escorted by armed police escort or guard, provided by the District Police Administration.
- 6) Ammonium Nitrate melt shall be transported in specially designed tankers with manhole and discharge faucets duly sealed by the melt supplying firm. The melt tanker shall carry a quality control certificate issued by the Ammonium Nitrate melt supplying company. The receiver shall verify that the seal on manhole and discharged faucet is intact and verify concentration factor of

Ammonium Nitrate.

- 7) Transport of Ammonium Nitrate in sensitive area notified by Ministry of Home Affairs shall not be allowed during the period of Sunset to Sunrise.
- 8) No smoking and no fire or artificial light or any article capable of causing fire shall be allowed on the vehicle carrying Ammonium Nitrate or Ammonium Nitrate melt.
- 9) The vehicle shall not be used for carrying passenger.
- 10) The vehicle, while Ammonium Nitrate are being loaded or unloaded or transported shall always be under the charge of competent person who shall be experienced in handling of Ammonium Nitrate and fully conversant there under. Where the vehicle not driven by the licence holder, a document signed by the licensee holder naming persons authorised to drive and accompany the vehicle shall be carried in the vehicle and produced on demand to an inspecting officer.
- 11) The Ammonium Nitrate shall be loaded into the vehicle only at the licenced premises of consignor and unloaded from vehicle at the licenced premises of the consignee.
- 12) The licence holder shall maintain account of Ammonium Nitrate transported in the Form R-6 and present the same on demand by an inspecting officer.
- 13) Free access shall be given at all reasonable time to any inspecting or sampling officer and every facility shall be afforded to the officer for ascertaining that the provisions of the Act and these rules and these conditions are duly observed.
- 14) Accidents by fire or explosion and losses, shortage or theft or Ammonium Nitrate shall be immediately reported to the nearest police station and the District Authority.

**Signature, Designation and Seal of
Licensing Authority**

FORM R-9

(See rule 14 of Ammonium Nitrate Rules, 2012)

MONTHLY RETURNS OF AMMONIUM NITRATE

Statement of Ammonium Nitrate Received, used, sold destroyed and stolen during the month of in respect of storehouse of situated at District State.....

License Number in Form of Ammonium Nitrate Rules 2012

1. Opening balance on the 1st day of the month:

2. Account of Ammonium Nitrate:

Particulars of Ammonium Nitrate received

Date	Quantity (in Kgs)	Name, Address and Licence number of suppliers from whom Ammonium Nitrate was received	Pass No.
1	2	3	4
1.			
2.			

3. Total quantity of Ammonium Nitrate used or sold during the month

Date	Quantity (in Kgs)	Name, Address and Licence number of suppliers from whom Ammonium Nitrate was sold	Pass No.	Quantity used (in Kgs)
1	2	3	4	5
1.				
2.				

4. Particulars of Ammonium Nitrate destroyed during the month

Date	Quantity used (in Kgs)	Reasons for destruction
1	2	3
1.		
2.		

5. Particulars of Ammonium Nitrate stolen or Short received.

Date	Quantity (in Kgs)
1	2
1.	
2.	
3.	
4.	

5 (a)

Quantity (in Kgs)	Whether theft or loss reported to police and District Authority if so, give reference	Remarks
3	4	5
1.		
2.		
3.		
4.		

**Signature of Licence-Holder or
Person In-charge**

Place

Date

FORM R-11(a)

(See rule 20(3) of Ammonium Nitrate Rules, 2012)
FORM OF INTIMATION TO BE GIVEN BY THE CONSIGNOR OR
STEVEDORE TO THE DISTRICT SUPERINTENDENT OF POLICE
BEFORE DISPATCH OF CONSIGNMENT OF AMMONIUM NITRATE

1. Quantity of Ammonium Nitrate or Ammonium Nitrate melt
proposed to be despatched
2. Number of bags (in case of solid Ammonium Nitrate)
.....
3. Ammonium Nitrate proposed to be transported by vehicle
registration number
4. Name and address of consignee.....
5. Number and validity of consignee's licence to store Ammonium
Nitrate.....
6. Consignee's indent number and date
7. Name and address of authorized person who will receive the
consignment.....
8. Date of Despatch of consignment
9. Probable date on which consignment reaching consignee's place
.....

Place:.....

Signature of consignor or
authorized person

Date:-.....

Full Name

Licence Number.....

ANNEXURE-M**FORM R-11(b)**

(See rule 21(6) of Ammonium Nitrate Rules, 2012)
PASS ISSUED BY THE CONSIGNOR OR STEVEDORE FOR TRANSPORT
OF CONSIGNMENT OF AMMONIUM NITRATE

1. Pass No. Date
2. This pass covers.....bags while in transit from village/ town
.....District.....
State.....to
village/town.....District.....
State..... containing following quantity of Ammonium
Nitrate;

(A) Ammonium Nitrate (Solid)

Sr. No.	Explosive Name	Quantity	Unit(kg)	. No. of bags	Batch No	Batch Date
1						
2						
3						
4						

(B) Ammonium Nitrate (Melt)

Sr. No.	Explosive name	Quantity(kg)

3. (a) Mode of transport
- (b) Vehicle registration No.
- (c) Details of P-4 licence under Ammonium Nitrate Rules, 2012 on
the strength of which Ammonium Nitrate is being
transported.....
.....

4. Name and address of consignee
5. Consignee's Licence number
6. Consignee's order number with date and quantity of Ammonium Nitrate.....
7. Consignee's letter number and date intimating readiness to receive Ammonium Nitrate
8. Date of dispatch of consignment
9. Approximate date on which consignment should reach the destination.....
10. Route for transport of consignment
-

Place:

**Signature of consignor or
authorized person**

Date:

Full Name.....

Licence Number.....